

From: Members APS members.aps@contact.csc.gov.au 
Subject: Re: My superannuation guarantee in retrospect for my employment with DSS and disability issue
Date: 25 January 2024 at 3:05 pm
To: crystalandbarran@gmail.com

MA

Dear Barran,

Thank you for your enquiry regarding your eligibility to contribute into one of our public sector schemes.

Your enquiry has been forwarded to the employer service team for action.

You can expect a response within a week. We apologise for any inconvenience that this requirement may cause you.

If we can help further please call us on 1300 000 377 or reply via return email.

Yours sincerely

Jack
Customer Information Representative



Commonwealth
Superannuation
Corporation

----- Original Message -----

From: Barran Dodger [crystalandbarran@gmail.com]

Sent: 25/1/2024, 2:49 pm

To: members.aps@contact.csc.gov.au

Cc: crystalandbarran@gmail.com

Subject: Re: My superannuation guarantee in retrospect for my employment with DSS and disability issue

? External Email : Please be cautious of links and attachments

Please find my birth certificate

Please keep that confidential

I prefer my super account to be made in the name of

Barran resonance dodger

If it deemed that I was not an employee of DSS

That will have to be taken up with Scott Treadwell at the fed court who has stated he is satisfied I was

Barran dodger

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CSC: AFSL 238069 ABN 48 882 817 243 RSE L0001397

ADF Super : RSE R1077063

CSS: RSE R1004649

MSBS: RSE R1000306

PSS: RSE R1004595

[Barran Resonance Dodger birth certificate ID 09.12.2021 1.pdf (application/pdf)]

On 24 Jan 2024, at 1:17?pm, Members APS <members.aps@contact.csc.gov.au> wrote:

Dear Barren,

We are sorry to hear about the difficulties you are facing at the moment, and that whilst we would be happy to do anything within our power to assist, we are unable to do so as based on the information provided we are unable to locate any record within CSC.

To look to have an account established retrospectively as you are requesting with support of your court documents, you will need to contact the Employer / Department that you were employed by during the period you are referencing. If/when this account is established and funds are credited into it, we will be more than happy to assist you to the best we can within the restrictions of legislation, to enable you to access any portion of these funds applicable.

If we can help further, please call us on 1300 000 377 or reply via return email.

Yours sincerely

Christina



From: Barran Dodger [crystalandbarran@gmail.com]

Sent: 22/1/2024, 4:26 pm

To: members.aps@contact.csc.gov.au; anas.c@genu.org.au; zabi@freelivingaustralia.com.au

Cc: info@brjames.com.au; crystalandbarran@gmail.com

Subject: Re: My superannuation guarantee in retrospect for my employment with DSS and disability issue

? External Email : Please be cautious of links and attachments

Michael

Im really struggling with neglect today

Zabi and anas I don't think your making suffer enough

I killed myself three years ago because of financial abuse and neglect

I wasn't kidding I died

Now I face a cover up and conspiracy

The same neglect causing that murder is still going three years later

I can't stand it any more

Have a heart

I don't have a member number to put in

You're all making me beg for my food and my very life

See here

barrandodger.wixsite.com

[<image002.png>](#)

Please call me back

Richard McLean

See this... have a heart mate ive got brain damage

0406797300

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CSC: AFSL 238069 ABN 48 882 817 243 RSE L0001397
ADF Super : RSE R1077063
CSS: RSE R1004649
MSBS: RSE R1000306
PSS: RSE R1004595
PSSap: RSE R1004601

[FATAL SUICIDE the attempt was lethal dos that mean i was dead because i wanted to be free from oppression or i was luke warm dead whatewver it got worse copy.pdf (application/pdf)]

On 4 Jan 2024, at 3:29?pm, Barran Dodger <crystalandbarran@gmail.com> wrote:

Good afternoon Michael.

Thanks for responding to my question regarding my superannuation guarantees for being employed with DSS

It is expected I will have insurance cover somehow as a public official

That is on a federal court document of my employee status with the federal court confirming it5

Can we please work towards an answer to avoid my further homelessness

I will answer your questions below.

On 4 Jan 2024, at 12:56?pm, Members APS
<members.aps@contact.csc.gov.au> wrote:

Good afternoon BRD,

thank you for your enquiry regarding your superannuation.

No problems.

Please note you will need to refer to your former employer for specific details such as confirmation of contributions to your superannuation, unless you can provide the details requested below

provide the details requested below.

When I filled out the form for Australian super I neglected to fill out the parts identify the ndis as my employer

\Tax department My Gov

When to request stapled super fund details

You will need to request stapled super fund details for new employees who start on or after 1 November 2021, when:

you need to make super guarantee payments for that employee

they are [eligible to choose a super fund](#), but don't. (This was me). This includes [contractors](#) who you pay mainly for their labour and who are employees for super guarantee purposes. (This was also me contract with the NDIS attached).

You may need to request stapled super fund details for some employees who aren't eligible to choose their own super fund.

This includes employees that are:

temporary residents

covered by an enterprise agreement or workplace (I have attached the enterprise agreement).

Please see attached:

NDIS DOES choose its own super fund. That fund is detailed in the NDIS enterprise agreement.pdf

Please also see:

Superannuation

- 5.25. The NDIA will make [compulsory](#) employer contributions as [required](#) by the applicable legislation and [fund requirements](#).
- 5.26. The NDIA's default superannuation fund for new employees is the [Public Sector Superannuation Accumulation Plan \(PSSap\)](#). The NDIA will [provide employer superannuation contributions to members of the PSSap of no less than 15.4 per cent of your fortnightly contribution salary](#).
- 5.27. Existing Public Sector Superannuation (PSS) and Commonwealth Superannuation Scheme (CSS) arrangements will continue in accordance with the relevant legislation and requirements.
- 5.28. Where you [exercise superannuation choice](#), the NDIA will [provide employer superannuation contributions of no less than 15.4 per cent of your fortnightly contribution salary](#).
- 5.29. Employer contributions will not be reduced by any other contributions made through

- 5.29. Employer contributions will not be reduced by any other contributions made through salary packaging arrangements. This clause does not apply where a superannuation fund cannot accept employer superannuation contributions.
- 5.30. Employer superannuation contributions will be paid during periods of paid and unpaid parental leave (including maternity, parental, adoption and foster care leave) for periods of leave to a maximum of 52 weeks, or as otherwise provided in legislation.
- 5.31. The CEO may choose to limit superannuation choice to complying superannuation funds that allow employee and/or employer contributions to be paid through fortnightly electronic funds transfer using a file generated by the NDIA's payroll system.
- 5.32. Any fees applied by a **chosen fund** associated with the administration of superannuation contributions will be borne by you.

Superannuation allowance

- 5.33. The CEO may pay a superannuation allowance where the NDIA is no longer permitted to pay employer contributions to your superannuation fund (due to your age).
- 5.34. The superannuation allowance will be equivalent to the amount that the NDIA would have paid if you were entitled to **receive employer superannuation contributions**, less any contribution amount accepted to your superannuation fund.

Please see attached enterprise agreement:

EA NDIA Enterprise Agreement 2020-23 DOCX.docx

Please see this attached file:

NDIS DOES choose its own super fund. That fund is detailed in the NDIS enterprise agreement.pdf

Please see attached file:

NDIS Quality and safeguards commission contract with Richard William McLean 30th June, 2019 .pdf

That proves that I am an employee of DSS overseeing the NDIS who al have a Government contract to. This also enables me to make a PID under the PID act as a public official.

Employees are supposed to be paid a superannuation guarantee as per the legislation.

Please see attached file:

2023 03 27 federal court satisfied i am or was an employee of DSS Final Assessment - Dr Rich McLean copy 6.pdf

[2023 03 27 federal court satisfied i am or was an employee of DSS Final Assessment - Dr Rich McLean copy 6.pdf (application/pdf)]

'A public interest disclosure can only be made by a **"public official"**; paragraph 26(1)(a) PID Act. The meaning of **"public official"** is defined and includes current or past Australian Public Sector employees; section 69 PID Act. Section 30 of the PID Act extends this meaning to **include employees of organisations which provide goods or services under a Commonwealth**

contract; subsection 30(3) PID Act. As a general principle an organisation which is a party to a contract that prescribes the terms for grant funding is not a contracted service provider for the purposes of the PID Act.

On the information you have provided me, **I am satisfied that you are, or were, an employee with the Department of Social Services**, providing services under the trading name Rich McLean, Arts Life Coach, Peer-Support Worker & Mental Health Advocate.’

Now that a Federal Court document has confirmed that I was an employee of DSS you can see why I should have been paid superannuation and insurance benefits for my time employed by DSS of the standard minimum as prescribed by legislation and the superannuation guarantee.

It is not permissible that your response says I was not an employee. This document is not merely an opinion that can be taken or left or argued into insignificance - but a fact stated on a Federal Court letterhead by an authorised person able to confirm it.

If you were to argue I was not an employee that would have to be decided at the AAT or indeed if that failed the federal court and that evidence is already existing.

[NDIS DOES choose its own super fund. That fund is detailed in the NDIS enterprise agreement.pdf (application/pdf)]

[page2image38854992.png (image/png)]

[page2image38861440.png (image/png)]

[page2image38849792.png (image/png)]

determination made before 1 Januarv 2021.

For employees that started working for you on or after 1 November 2021 and have not provided you with their choice of super fund, you should make contributions into:'

[NDIS Quality and safeguards commission contract with Richard William McLean 30th June, 2019 .pdf (application/pdf)]

Dear

National Disability Insurance Agency

Enterprise Agreement 2020-2023

Version V0.21

Last edited 26.02.2020 **Commencement date** 24.04.2020 **Agreement ID** AG2020/901

I am reporting my employer, the NDIS/ A for not paying me super into a super fund of the governments that is law through the industrial relations agreement:

Title and length of agreement

. 1.3. This Agreement shall be known as the National Disability Insurance Agency Enterprise Agreement 2020-2023.

. 1.4. This Agreement is made under section 172 of the *Fair Work Act 2009* (FWA).

The parties bound are:

Parties bound

1.7. This Agreement covers and binds the Chief Executive Officer (CEO) of the NDIA on behalf of the Commonwealth; and all Australian Public Service (APS) employees of the NDIA:

1. with the exception of Senior Executive Service (SES) employees
2. noting that in accordance with section 58 of the FWA, it will cover and apply to transferring employees covered by the Disability Services Enterprise Agreement Victoria 2018-2022 effective from 1 July 2022.

Who is an APS?

Who are Australian public service employees?

The Australian Public Service formally comprises **all Australian Government departments and agencies where staff members are or can be employed under the Public Service Act 1999**. At June 2013, there were 167,257 APS employees, down from 168,580 APS employees in June 2012.

It says I am eligible as a PSA if:

You are eligible if you:

are **an Australian citizen at the time of application. have as a minimum an Australian recognised bachelor degree in the last four years** and can provide evidence of your qualification prior to commencing.

'How to join APS' It says:

A job with us means you can work on what you are passionate about. With such a wide variety of jobs available, you can do almost anything within the public service.

It also has a dedicated NDIA page meaning if you are an employee of the NDIA then you are automatically classified as a PSA

Their web link is here:

<https://www.apsjobs.gov.au/s/graduate-portal/> department/national-disability-insurance-agency- MCLDFESMUAAZDGNA76DQLYSRLUBQ

What jobs are considered public servants?

Public servants include **any local, state or federal government employee of a government organization**. Firefighters, police officers, **public health officials**, librarians, teachers and volunteers for the Peace Corps all fall in the public sector.13 Jan 2020

According to this definition - I am a public servant

What's the difference between civil servant and public servant?

Civil servants include members of the government, members of various government's department and members of embassies and consulates. Public servants include **firefighters and police officers**, but also volunteers and **privates that provide services to the community** and to the neediest segments of society.

According to this: I am a

Federal public service employee

Employment Defined

Employment in the federal public service must be with a department or branch that **forms part of the public service**. It

[page4image39705296.png (image/png)]

[page4image39705712.png (image/png)]

[page4image39705920.png (image/png)]

also includes employment in any of the boards, commissions or agencies that form part of the public service for pension purposes.24 Sept 2021

Additionally it says about the APS website:

The Australian Public

Service

The APS has a wide range of opportunities, and offers full time, part time and temporary or non-ongoing roles across a range of locations in Australia and overseas. There are entry level, management and technical positions as well as policy, project administrative and

support roles. Apprenticeship, Indigenous career pathways, school leaver and graduate programs are all available. The APS also offers generous leave and flexible working conditions, **above average superannuation contributions** and the opportunity to influence the future of all Australians for the better.

In regards to final entitlements of a role, it is stated:

27 August 2021

Final entitlements are the payments you receive when you cease employment. These payment may include:

[page6image39690576.png (image/png)]

- your final salary payment including any outstanding payments for overtime and flextime (where your enterprise agreement provides for the cashing out

of flex credits on separation)

- the leave you have accrued but not taken

Your final entitlements are determined by the **Fair Work Act 2009** and the **industrial instrument you are employed under**. This will usually be your **agency's enterprise agreement**, or your contract of employment.

The NDIS has

- redundancy payments and payments in lieu of notice.

Complaints about final

[page6image39691200.png (image/png)]

[page6image39691408.png (image/png)]

[page6image39691616.png (image/png)]

[page6image39691824.png (image/png)]

entitlements

APS Code of Conduct

procedures

Meaning that their employees are of that definition

<https://www.ndis.gov.au/>

On 7th April 2020, a workplace agreement was signed by Martin Hoffman for Work Safe / an enterprise agreement.

about-us/policies/aps- code-conduct- procedures

Casual Employee: an employee who is engaged on an irregular or intermittent basis under section 22(2)(c) of the PS Act

Employee a person employed by the NDIA under the PS Act, whether full-time or part-time, in an ongoing, non-ongoing or intermittent capacity

PS Act. *Public Service Act 1999*

What does it say about my eligibility to be deemed an employee on the NDIS official website?

Workers

[page10image39687456.jpeg (image/jpeg)]

The NDIS Quality and Safeguards Commission is an independent government body that will work to improve the quality and safety of NDIS supports and services, and strengthen the skills and knowledge of workers, providers and participants across Australia.

The NDIS Commission is now operating in all states and territories.

Who is a worker?

[page10image39688704.png (image/png)]

Under the NDIS Commission, a worker is anyone who is **employed** or otherwise engaged to **provide NDIS supports and services to people with disability**. Workers can be **paid** or unpaid, and can be people who are **self-employed**, employees, **contractors**, consultants, and volunteers.

So according to that statutory Government authority, I am an employee and or a worker.

PSSap is the . Public Sector Superannuation Accumulation Plan - the NDIA's default superannuation fund for new employees who commenced after 1 July 2005

As I am an **employee** of the NDIA, I should have had a default superannuation fund.

This does not occur.

The **enterprise agreement** states that this superannuation is compulsory for me to have as a person actively engaged for years working for the NDIA/A

I was interested to read about The Governments **Supported Wage System (SWS)**

the Commonwealth Government system to promote employment for people who cannot work at full award wages because of a disability, as documented in the Supported Wage System Handbook

As a person who has had difficulties in the past and throughout my work and career, I would like this to be re-visited for the term of my **employment** consistent with **legislation**.

I was interested to read about eligibility **criteria for section B in terms of cessation of**

work because of a workplace issue, illness, or complexity, or abuse.

My complexity and systemic abuse is now documented at the following website:

[Home | drrichmclean](#)
[barrandodger.wixsite.com](#)

[pfavico.ico (image/vnd.microsoft.icon)]

Eligibility criteria

. B.1 You will be **covered** by this appendix if you are unable to perform the range of duties to the competence level required within the class for which you are engaged under this Agreement, because of the **effects of a disability on the productive capacity and you meet the impairment criteria for receipt of a disability support pension. (I AM ON A DSP NOW SO THIS IS ME).**

. B.2 The appendix does not apply to any existing employee who has a claim against the employer which is subject to the provisions of workers compensation legislation or any provision of this Agreement relating to the rehabilitation of employees who are injured in the course of their employment.

Supported wage rates

B.3

You will be paid the applicable percentage of the relevant minimum wage according to the following schedule:

10% 10%

On 22/01/2021 I became ill from work because of complex reasons, and I was no longer physically able to attend to see my two year long client, who had extremely high needs.

I took provisions in order to reduce stress and risk with that situation as well.

I was not available because of a parallel magistrates decision linked to my validation of child sexual abuse, and that I had been unsuccessful in various VOCAT cases which I believe were actually a case of systemic oppression from Government agencies.

I also could not function in the emotional and critical thinking capacity for my role, and be the best support I could be for my important client.

It was only a short while after that whereby I was hospitalised in a psychiatric unit.

Whilst I was there, I very nearly died by suicide.

The FOI from the hospital states that it was a 'lethal injury', and a 'fatal' attempt.

It is recorded in the clinical notes from the FOI's that I was found unresponsive, having totally bled out with 'no observable pulse', If I were not freakishly accidentally discovered and rushed out lifeless in a code black - and revived with a refilling of my bodies blood and basic fluid, and dramatic oxygen pumps refilling my lungs - I painfully and eventually gained consciousness.

... ..

What killed me was not mental illness.

I will prove beyond reasonable doubt that it was the sum of prejudice stigma shame the non validation via a magistrate of my sexual abuse where I was the child victim, and a decades long consistent systemic government oppression that was conscious malicious and a sustained attack.

Further to that; I have an acquired brain injury arising from the toxicology of the carbon dioxide in my brain toxicology and the lack of oxygen.

Research shows that it destroys short term memory in the region of the hippocampus.

I struggle even day with my thoughts and my thought processors.

I changed my name to escape the systemic oppression and denial my name had within the Government and I could not remember what it was.

I can barely organise myself to get a new glasses prescription, or attend any kind of meeting or have the memory and drive to do simple things like get a haircut.

The amount to be paid per year is not less

. B.4 The **salary payable** under this table will **not be less** than the minimum amount determined by the **Fair Work Commission (FWC)**.

It also says

. B.5 Where your assessed capacity is 10 per cent you must receive a high degree of assistance and support.

In regards to the assessment of capacity:

‘Assessment of capacity

- . B.6 For the purposes of establishing the percentage of the relevant minimum wage, your productive capacity will be assessed in accordance with the **SWS** by an approved assessor, having consulted you and your employer and if you so choose, your **representative**. *(My lawyer cc into this email)*.
- . B.7 Assessment made under this schedule must be documented in a SWS wage assessment agreement, and retained by the employer as a time and wages record in accordance with the *Social Security Act 1991*.

‘

This needs to be urgently done On other terms of employment:

Other terms and conditions of employment

B.9 Where an assessment has been made, the applicable percentage will apply to the relevant wage rate only. Employees covered by the provisions of the schedule will be entitled to the same terms and conditions of employment as all other workers covered by this Agreement paid on a pro-rata basis.

the systemic oppression from Government agencies, my non validated child sexual abuse case, the stressors from work of completing a VOCAT assessment and statement for my two-year-long-client-who was a survivor of child rape and incest, which triggered me.

The client was abusing and would call threatening me.

I put in place a new users agreement whereby he was banned from calling or texting - something I had allowed in case of an emergency in the past.

Our collection approach to unpaid super

If your **employer** doesn't pay the minimum amount of super into the correct fund by the due date, they may have to pay the **super guarantee charge (SGC)**.

We may investigate an employer's super guarantee compliance on our own initiative or in response to an employee enquiry. If we determine that your **employer (or former employer)** has not complied with their SG obligations for you, **(THEY HAVEN'T)** or we reasonably suspect this to be the case, we may disclose details of this to you.

From 1 April 2019, the law allows us to disclose an employer's non-compliance to affected employees even if they haven't lodged an enquiry with us.

We **prioritise** the collection of **unpaid SGC debts. (Please do this I am staring down the barrel of homelessness again)**. We'll work with employers who engage with us to address their debt. For those that don't engage, we'll take **stronger action**. This can include:

director penalty notices garnishee notices.

If you've chosen to report your employer, we'll keep you updated throughout the investigation. If we establish there is an SGC debt, we'll inform you of the **recovery actions we're taking. (Please do this)**.

Get superannuation guarantee results

Have I been appointed a super account as per the legislative requirements of the 'NATIONAL DISABILITY INSURANCE AGENCY ENTERPRISE AGREEMENT 2020 - 2023'?

[08.08.2019.tax.letter.exposing.super.jpg (image/jpeg)]

[Tax.file.number.declaration.richard.mclean.JPG (image/jpeg)]

[tax.justsuper.age.theage.jpeg (image/jpeg)]

[EVIDENCE ATO was super taxed appropriately EVIDENCE Australian Tax Office Our reply to your super enquiry SECOFFICIALSensitive.pdf (application/pdf)]

See this document \$44000 taxable income used to calculate the super contributions (tax return).

[tax return 1.pdf (application/pdf)]

ease see below I neglected to get the ndis to fill out their part but it is a fact I was employed by them arts DSS

[Tax.file.number.declaration. for payee and payer but ndis didnt fill it out - richard.mclean.JPG.pdf (application/pdf)]

Alternatively, if you can provide details as they are reflected in our records, if there is a record for yourself, we can supply information related to any superannuation you may have with CSC.

In order to provide a high level of security and protection to your superannuation benefits, we require the following additional information before we can answer your enquiry;

- Full name (including any middle names)

My name now is Barran Resonance Dodger.

My previous name for your records is Dr Richard William Mclean

- Date of birth

08/04/1973

- Membership number

I don't have a membership number I should have been allocated one as I was an employee of DSS

Needs to be put in place retrospectively

Confirmed employee for DSS

DSS login below:

[30:03:2023 cant login to DSS username password not correct.jpg (image/jpeg)]

{lease also see my employee login at DSS here:

[14.02.2022.evidence.of.government.employee.stable.id.comcare.aat.department.social.services..jpg (image/jpeg)]

Can we please all act towards an equitable solution ism which I am not victimised or have my prosperity redacted from me as per has been happening for twenty years?

I am next to homeless and I need some prosperity to come from somewhere so I can reclaim my life.

Thanks please cc me back and Bevan Rhys James will answer your questions regarding my account.

Thanks,

Richard Mclean

aka

Barran Dodger

PSS AFS Licence No: 238069

Postal Address: PSS, GPO Box 2252, Canberra, ACT 2601
Telephone: 1300 000 377
Fax: (02) 627

